09 — Pilot programme agreement

Français (version de référence) : ../fr/09-convention-programme-pilote.md

> **TEMPLATE — TO VALIDATE.** Used with the businesses selected for the pilot programme (see `marketing/en/02-pilot-programme.md`).

Header	
Jurisdiction	DRC; OHADA law
Assumptions	H-01, H-02, H-03, H-09, H-10, H-16
Sources	S01, S08 — see 00-legal-research.md § 7
Clauses to validate	V-01, V-02, V-12; use of the pilot's name and testimonial
Version	[NUMBER] of [DATE]

Between

[PUBLISHER COMPANY NAME], RCCM [RCCM], represented by [NAME, TITLE] (the "Publisher"), and **[PILOT BUSINESS NAME]**, [FORM], RCCM [RCCM or "not registered"], [ADDRESS], represented by [NAME, TITLE] (the "Pilot").

1. Purpose

Test Nhill (Nhill Business, and Nhill POS if useful) in the Pilot's real conditions, collect its feedback and measure the results agreed in article 4.

2. Term

From [START DATE] to [END DATE] ([8 to 12] weeks). Extension possible by written agreement, including by e-mail.

3. Conditions

3.1 Access is **free** during the pilot, for at most [N] users and [N] tills. No purchase commitment is required. **[H-16]**

3.2 At the end of the pilot, the Pilot may subscribe [at the public price / with the "pilot" discount of [N] % for [N] months]; otherwise its data remains exportable for [90] days, then is deleted.

3.3 The Publisher provides: a [2]-hour onboarding session (on site in Kinshasa or remote), the initial import of products from a file provided by the Pilot, priority support through [BUSINESS WHATSAPP / E-MAIL] during business hours.

3.4 The Pilot undertakes to: use Nhill for [counter sales / invoicing / stock] during the pilot; appoint a contact person; take part in [3] 30-minute check-ins; answer the end-of-pilot questionnaire.

4. Success measures (agreed with the Pilot)

Indicator	Starting point	Target
[Time to close the till each day]	[to measure]	[ ]
[Stock differences found at stock-take]	[to measure]	[ ]
[Share of sales entered in Nhill]	—	[ ]

5. Pilot version and liability

5.1 The Pilot knows it is using a version under evaluation: anomalies may occur. It keeps its usual records (book, standardised invoices) during the pilot.

5.2 Nhill **is not a certified invoicing system**: a VAT-registered Pilot keeps issuing standardised invoices with a certified device. **[TO VALIDATE: V-12.]**

5.3 The Publisher's liability is limited to direct damage caused by its proven fault, up to [AMOUNT] **[TO VALIDATE: V-01 — cap for a free service]**.

6. Data

The Publisher processes the Pilot's data as processor (data processing agreement, template 06, applicable during the pilot). The Pilot informs its staff of the activity log (template 17).

7. Feedback, name and testimonial

7.1 The Pilot's feedback may be used freely to improve Nhill.

7.2 The Publisher only cites the Pilot's name, logo or a testimonial **with its prior written consent, given separately** for each use (website, presentation, social media). Result figures are only published with this consent and as measured, without favourable rounding.

Use	Pilot's consent (date, signature)
Name in a list of pilots	[ ]
Logo on the website	[ ]
Written testimonial (text reviewed and approved)	[ ]
Video / photo on the premises	[ ]

8. Confidentiality

Each party keeps the other's non-public information confidential for [2] years.

9. Early termination

Either party may end the pilot at any time in writing, with [7] days' notice.

10. Governing law

Law of the DRC; amicable settlement, then [Kinshasa/Gombe commercial court] **[TO VALIDATE: V-02]**.

Made in [CITY], on [DATE], in two copies.

For the Publisher	For the Pilot
[NAME, TITLE]	[NAME, TITLE]